

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM06
HON. JUDGE Megan L. Wagner

Date: 06/05/2026

Court Room Rules and Notices

#	Case Name	Tentative
	Longworth Trust 2026-01559811	MOTION TO EXPUNGE LIS PENDENS (ROA 10) On 5/19/26 Beneficiary Faye Elaine Longworth filed an ex parte application to quash the notice of pendency of action recorded by Petitioner Jerdon D. King III against the real property located in Fullerton, California (the “Property”). Petitioner opposed the ex parte application (ROA 18) arguing that notice was inadequate and that he has met his burden of proof to establish both the petition alleges a cause of action which affects real property and he has established a probability of success on the merits. The Court denied the request as an ex parte application but deemed the application to be a motion to expunge and set a briefing schedule. Petitioner timely filed an Opposition (ROA 34) and Longworth timely filed a Reply brief (ROA 36). The Court has read and considered all referenced documents, all related documents, and all relevant portions of the court file. A motion to expunge a lis pendens must be granted where a lis pendens is improper, either because: (1) the pleading on which the lis pendens is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of its real property claim(s) by a preponderance of the evidence. (Code Civ. Proc., §§ 405.31, 405.32; Prob. Code, § 1000.) Unlike most other motions, when a motion to expunge is brought, the burden is on the party <u>opposing</u> the motion to both show the existence of a real property claim and the probable validity of that claim. (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 647; Code Civ. Proc., § 405.30.) <u>Real Property Claim</u> Code of Civil Procedure section 405.20 states in relevant part, as follows: “A party to an action who asserts a real property claim may record a notice of pendency of action in which that real property claim is alleged.” “ ‘Real property claim’ means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the

	pleading, other than an easement obtained pursuant to statute by any regulated public utility.” (Code Civ. Proc. § 405.4, emphasis added.) The allegations of the relevant pleading determine whether a “real property claim” is involved; no independent evidence is required. (See <i>Urez Corporation v. Superior Court</i> (1987) 190 Cal.App.3d 1141, 1149.) Here, the Amended Petition alleges: Longworth executed the Faye Longworth Trust in 2018, naming herself as Trustee; executed an Amendment & Restatement of Trust on May 23, 2023, naming Diana Meinhold of Encore Fiduciary Solutions, as trustee; and, on information and belief, Longworth executed a further amendment of her trust in March 2024, naming Lisa Maxson as Successor Trustee. The allegations in the body of the Amended Petition (ROA 6) reference a 2018 Quitclaim Deed transferring the Property from Longworth as an individual to Longworth as trustee of the Trust. Further, the Property is listed as a trust asset in the 2018 Trust attached to the Amended Petition. Petitioner asserts that by March 2024 Longworth lacked capacity to manage her financial affairs and that the March 2024 amendment, and any amendments thereafter, were the result of undue influence. If Petitioner prevails on his claim of lack of capacity or undue influence and the March 2024 Amendment is invalidated, and the Court removes Lisa Maxson as trustee, title to the Trust will no longer be held by Lisa Maxson, as Trustee of the Faye Longworth Trust. “The trustee of a trust holds title to real property. Unlike a corporation, a trust is not a legal entity. Rather, a trust is a fiduciary <i>relationship</i> with respect to property. When property is held in trust, there is always a divided ownership of property, generally with the trustee holding legal title and the beneficiary holding equitable title.” (<i>Newell v. Superior Court of Los Angeles County</i> (2024) 107 Cal.App.5th 728, 736 (cleaned up; italics original).) If a petitioner prevails on an undue influence claim, “the court may remove [the] trustee. The court would have to designate a new trustee of the trust, who would then be entitled to hold title to the ... property in his or her name as successor trustee. In that event, [the] petition would change the name of the titleholder. True, as the probate court stated, title would still be in the name of the trustee, but the trustee would be a different person, and the name of the title owner on the deed would be different. That’s a pretty big effect on the title to the Van Nuys property. The probate court erred in ruling [the] petition did not contain a real property claim within the meaning of [Code of Civil Procedure] section 405.4.” (<i>Id.</i> at 737.) Longworth has not met her burden to show the petition does not affect title to the Property. <u>Probable Validity</u> “Probable validity,” with respect to a real property claim, means that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim. (Code Civ. Proc., § 405.3.) As noted above, the party opposing the motion has the burden of showing the probable validity of at least one of the real property claims upon which the lis
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pendens is based. (*Kirkeby v. Superior Court*, supra, 33 Cal.4th at p. 647; Code Civ. Proc., § 405.32.)

"[T]he court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim" (Code Civ. Proc. § 405.32.)

'[T]o curb abuses of the lis pendens statute, the 1992 amendments required, among other things, the recording party to show by a preponderance of evidence that the action is probably valid. Indeed, the former statute did not carefully distinguish between the concepts of adequate pleading of a claim justifying a lis pendens and the evidentiary merit of the claim. The amended statute thus requires a minitrial on the merits for making a probable validity finding, not a quasi demurrer-like analysis as the trial court noted here. Nothing in the statute indicates the claimant is only required to make a prima facie case regarding the probable validity of the real property claim." (*De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1279–1280 (cleaned up).)

In her Reply, Longworth points out that the evidence Petitioner cites regarding lack of capacity consists of unauthenticated, hearsay document and this Court agrees. Such documents are not admissible evidence and Petitioner has not met his burden of proof on probability of success.

Further, even had Petitioner had established by a preponderance of the evidence a probability of prevailing, the Court finds that adequate relief could be secured by the posting of a bond. Code of Civil Procedure section 405.33 provides in pertinent part: "In proceedings under this chapter, the court shall order that the notice be expunged if the court finds that the real property claim has probable validity, but adequate relief can be secured to the claimant by the giving of an undertaking. The expungement order shall be conditioned upon the giving of the undertaking of such nature and in such amount as will indemnify the claimant for all damages proximately resulting from the expungement which the claimant may incur if the claimant prevails upon the real property claim."

The motion to expunge lis pendens is **GRANTED**.

However, pursuant Probate Code section 17206, the Court orders either the proceeds of the sale be placed in a block account and not withdrawn without prior court approval OR Longworth post a bond in the amount of the sale proceeds – to be discussed at the hearing on the motion.

Attorney's Fees

When ruling on a motion to expunge lis pendens, the court must award the prevailing party its reasonable attorney's fees and costs incurred in making or opposing the motion, unless the court finds either that: (1) the non-prevailing party acted with substantial justification; or (2) other circumstances make the imposition of attorney's fees and costs unjust. (Code Civ. Proc., § 405.38.) Such an award is to be made against the losing party only, not counsel. (*Doyle v. Superior Court* (1991) 226 Cal.App.3d 1355, 1359.)

		The court finds there was substantial justification for the filing of the lis pendens and on that basis denies Longworth's request for fees.